STATE
Versus
NOMATTER KAMBANDE

HIGH COURT OF ZIMBABWE
MUCHAWA J
HARARE; 13, 14, 15, 16 and 23 January 2026

Assessors: Mrs Mawoneke and Mr Shenje.

D.H Chesa, for the State.
S.K Makonde, for the accused.

Introduction

MUCHAWA J: The accused stands charged with two counts being murder as defined in section 47(1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23] and attempted murder as defined in section 189 as read with section 47(1) of the same Act.

The allegations in respect of count one are that on 27 December 2024 and at New Stands Whitecliff South, Zvimba, the accused unlawfully and with intent or realizing the attendant risk that his conduct may cause death, continued to so engage by assaulting Tinashe Shayi all over the body with fists, booted feet, sticks, a rope, and iron rod thereby causing injuries from which Tinashe Shayi died.

For count two, it is alleged that on 27 December 2024 and at New Stands, Whitecliff South, Zvimba, the accused unlawfully and with an intent to kill or realizing the attendant risk continued in assaulting Everisto Sachikonye with fists, booted feet, sticks, a rope and an iron rod all over the body thereby causing him some injuries.

The accused pleaded not guilty to both counts. Though he agrees to being present when Dryton Mukandi fetched Everisto Sachikonye and assaulted him, he claims to have stopped Mukandi, advised him to report to the police and retired to sleep. He also accompanied Mukandi

to fetch the deceased and was there when the deceased was assaulted by Mukandi. Similarly, he intervened and stopped the assault and retired to bed. He therefore never participated in any assault and denies any complicity in the perpetration of the offences and prayed for his acquittal.

The State case.

The State opened its case by producing, without any objections, the following:

(i) Exhibit 1 is the postmortem report.

(ii) Exhibit 2 is the accused's confirmed, warned and cautioned statement.

Five witnesses gave oral evidence as follows:

Everisto Sachikonye

On a date he could not recall, in November or December 2024, the witness was collected from the shops by the accused and another person unknown to him. They did not say anything but about 3 metres from the unknown man's house, they started assault him. His hands and legs were tied with a rope and they assaulted him using sticks and an iron rod. This was for 30 minutes before carrying him into the cabin. This went on from around 4:00 pm to 12:00 midnight. The two would take turns in assaulting him and he could not tell who used which weapon at any given time.

At that time he was forced to show the accused and Mukandi, the deceased's place as they were claiming that as they had been drinking beer together, it was from the proceeds of the property stolen from Mukandi, a gas tank plus a blanket.

The witness did not know the deceased's residence and passed through Samutoko's place (Fadzanai Mafungidza). The witness was made to knock and call out for Samukoto and the four of them proceeded to the deceased's place. He was once again made to call the deceased who responded after three calls and came out after the accused and Mukandi threatened to burn down his cabin. He followed them as demanded, leaving his brother. Samutoko was excused on the way and the four of them proceeded to Mukandi's place. The witness and the deceased were being assaulted and dragged on the way. Upon arrival, both had their hands and legs tied. An electric cable and sticks were used to assault them, and the two assailants would take turns to assault them. The cable was 2-3 metres long.

The witness was assaulted on the neck downwards indiscriminately. When he was assaulted in the cabin, electric cables and iron rods of ½ metre length and sticks were used and both participated. The assault in the cabin lasted for about 3 hours as they would take breaks.

It had taken them over an hour to reach Samutoko's place as the witness who was injured could not walk well. He had not been assaulted at Samutoko's place as well as at the deceased. He was, however, assaulted on the way back in Samutoko's presence. Deceased was also assaulted. Both the accused and Mukandi would take turns to assault them.

Upon arrival at the cabin both the witness and the deceased were taken inside and assaulted. It was then decided that the witness Sachikonye had been assaulted for long and they wanted to work on the deceased. He was taken outside, still tied and placed next to the well on the threat that if he tried to flee, he would be thrown into the well. The well was about one and half metres from the cabin facing the door.

The deceased was assaulted indiscriminately all over the body.

The accused had not stopped Mukandi from assaulting them at any time. When they suggested going to the police, the accused and Mukandi had refused and said they would settle the matter themselves. They said they would assault them till they produced the gas tank and blanket.

The witness did not produce any medical report but claimed that he was badly injured and could hardly walk and to date his back is still aching. He said he had forgotten his medical reports in Marondera.

Under cross examination, Sachikonye was quizzed on why he had not recorded in his police statement that an electric cable was also used to assault him. He insisted he had mentioned this as this was the same cable used to tie him up. He insisted he had been tied twice, upon collection from the shops and when they came back from collecting the deceased.

He had reported his assault some two days after the incident. He used to do some construction work for the accused and had never been accused of any thefts. He denied having gone for any indications.

He explained any inconsistencies in his statement as arising from the extreme pain he was in at that time and the narration in Shona and recording in English.

When he was by the well he had heard the deceased screaming whilst being assaulted. He also saw the assault as the door was initially opened. The accused was seen assaulting the deceased.

The witness had only learnt at the police that the accused was alleging that he had stolen a trowel from him.

On the day of the hearing the witness had sought the services of the interpreter to refresh his memory as he could not read, having gone to school up to grade 7 only.

Fadzanai Mupfungidza

This witness is commonly known as Samutoko in the Whitecliff South Area where he resides. He has known the accused for 2-3 years as someone he once did some construction work for. He would sometimes work with Sachikonye and knew the deceased from meeting in the neighbourhood bars.

On the 26th of December in the evening (not sure of time), the accused had come to the grinding mill where he slept providing security. When he did not respond to the knock, the accused introduced himself as Gunners with Sachikonye. They requested that he show them where the deceased lived. He was not sure where and suggested they do it in the morning since he was already sleeping. Mukandi forcefully entered the room and grabbed Samutoko by his clothes and pushed him out and ordered him to lead them to the deceased's house. He passed through some old man's house confirming the location which he was not too sure of.

When they got to the deceased's place Sachikonye called him out and told him to bring out the gas tank and blanket. The deceased denied knowledge of those items. Mukandi threatened to burn down his cabin. He came out and joined them leaving his brother.

The accused and Mukandi were walking with the deceased in between them whilst Samutoko and Sachikonye were walking behind them. The deceased was being questioned and would be slapped with open hands every time he denied having the goods. The two would take turns to assault the deceased. The first to assault was the accused.

Samutoko advised the accused and Mukandi to hand the deceased to the police and Mukandi told him to remain silent questioning if he intended to involve himself in the issue. They told him that they had finished with him but continued assaulting the deceased. They had taken more than an hour to walk to the deceased's place which was 400 metres away. He had not

seen Sachikonye being assaulted when he was present. He observed that Sachikonye was making a whining sound which he explained as arising from feeling cold. He had not seen any weapons used on the deceased by both the accused and Mukandi.

Admire Jeche

This witness is the young brother to the deceased who was with him when he was collected by the four men who came demanding that he return the gas tank and blanket. They had threatened to burn down the cabin prompting the deceased to leave with them. As soon as they left he went to report at his mother's place. They started searching for the deceased, first through Samutoko whom he had identified.

They were directed to the cabin where the deceased had been taken and observed blood and water at the door of the cabin. The occupant refused to open it, and they went to wake up his neighbour who came and woke him up. He opened the door and stood by the door. This man was not in court. He told them that the deceased had gone to his mother's residence to collect the stolen blanket and gas tank.

They went home to check for the deceased, but he was not there. They then went to lodge a report with the police. A certain lady next door also told them and police that the deceased had agreed to the theft and had gone to collect the gas tank and blanket around 5.00 am. The police left.

At that stage the witness went to the shops and the shop owner mobilized some residents and drove them in his lorry. They checked around the cabin and pulled out a plastic paper at the bottom at the back. When they peeped a body was seen. They entered the cabin and saw the deceased's body. It is then that the police came back and took charge of the scene.

Admire saw a crack on the deceased's head.

He had seen one of the four men holding an iron rod but could not identify who it was. When they were at the cabin looking for the deceased, the accused had come and said that they had collected the deceased and disciplined him so that he could return the stolen property. Both accused and Mukandi were not around when the deceased's body was collected.

Thokozile Sithole

This witness is the deceased's mother. She has lived in the Whitecliff area since 2006. She received the report of the deceased's collection by four men from Admire and prayed before

setting out to look for him. They went through several people asking about where Sachikonye lived and learnt it was at the accused's place. Before getting to the accused's place, they saw a cabin and a lot of water and blood. She instinctively felt that it was the place where the deceased had been assaulted especially after observing the footprints there.

When they knocked a man responded. They asked for Sachikonye's place and were referred to the accused's house. They, however, persisted in knocking but the occupant harshly told them to leave as they were looking for Sachikonye. It was then that they asked a neighbour, Clifford, to come and help wake up the cabin occupant. He woke up and when questioned he agreed that he was one of those who collected the deceased together with the accused, Sachikonye and Samutoko. He asked Clifford to call the accused who came, and Mukandi confirmed that it was him and the accused who had assaulted the deceased. She only later learnt that the cabin occupant was Dryton Mukandi.

Mukandi said the deceased and Sachikonye had agreed to the theft and gone to collect the stolen items from the deceased's mother's place. The accused confirmed this and said even his own trowel and clothes had been stolen.

The witness identified herself as the mother of the deceased and advised them that the said items were not at her house. They said the deceased had left around 4:30a.m and she wondered why he was not yet back as her house was not far. They left and checked at home but the deceased was not there. In their search they met up with a lady who told them she had heard that the deceased was still in the cabin but dead.

They went and lodged a report and the police came with them. By then the cabin was locked with two locks. She confirmed that a woman had told them and the police that the deceased had already left. The police left without further investigations.

The deceased was first discovered by the mob. She initially said it was the police it was the police and under cross examination she explained that it was too painful a memory to relive so she simply said it was the police.

Mukandi was a tenant in the cabin and not the owner.

She confirmed that the accused was invited by Mukandi from his house as he said they had both assaulted the deceased.

Themba Phiri

This witness is the investigating officer in the matter. He is stationed at ZRP Marimba and has had 21 years' experience in investigations and has served for 27 years in the force.

He was assigned the matter when the body was discovered and visited the scene. There was a mob and a Constable Muzoremba was in charge of the scene. He interviewed witnesses, including the neighbour Clifford who had been requested by deceased's relatives to wake up Mukandi. He also arranged for ferrying of the body to Sally Mugabe mortuary.

Whilst interviewing people at Whitecliff police Post, some 2 hours later, the accused arrived and he recorded a warned and cautioned statement from him, arrested him and transferred him to Marimba holding cells.

Sachikonye was accounted for some two days later. He was in a bad state as he was seriously injured. He mentioned the accused and Mukandi as the assailants on him and the deceased. He arranged for him to get medical attention through the standard form which had to be returned upon being filled. Sachikonye had swollen feet, bruises all over the body and was unable to walk. Such medical report had not been returned to him.

The Investigating Officer was unable to account for Mukandi but learnt that Mukandi was dating the accused's sister Netsai whom he was staying with. He had established that Netsai eloped with Mukandi when he fled the crime scene and efforts to locate both have been fruitless.

The accused voluntarily made indications at the crime scene.

Sachikonye was a man of no fixed abode and would reside wherever he was doing piece jobs. At the material time he had been building or had built a toilet for the accused and was staying with the accused. There were no sour grapes but after Mukandi's accusations, the accused also claimed that Sachikonye had stolen his trowel.

The accused's moniker, "Gunners" was said to be connected to his fish poaching at Lake Chivero.

The witness confirmed that he recorded the witnesses' statements in long hand then typed in English after getting narrations in Shona. The statements would then be read back to the witnesses, confirmed and signed.

Under cross examination the Investigating Officer explained that he had not received the report of a woman who had claimed to have seen the deceased leaving the cabin around 5:00am on 27 December 2024.

The Investigating Officer tried to locate the weapons used but could not find them. He had searched in the accused's house and found nothing but this was about 8 hours after the offence and there was an adequate opportunity for disposal.
At the time of recovery of the body both the accused and Mukandi had vanished.

The evidence of Dr Courgeut was formally admitted in terms of section 314 of the Criminal Procedure and Evidence Act and the State closed its case.

The Defence Case

Only the accused gave evidence in his defence. He elected to abide by his defence outline. He said he had an employer-employee relationship with Sachikonye.

On 26 December 2024 he said he was with Sachikonye in order to defend him so he could not be harassed on allegations of theft. He had been called by Mukandi who alleged Sachikonye had stolen from him as he was not in Whitecliff. When he met up with Mukandi they went hunting for Sachikonye and tracked him down to pa Ground shops. Mukandi asked for his property and they collected Sachikonye to Mukandi's place. Neighbours were watching and Mukandi chased everyone and said he would settle his issues on his own. The accused left and went to sleep.

Later on Mukandi came with Sachikonye and woke him up and reported that Sachikonye had disclosed where his stolen goods were and they were proceeding there. Seeing that there was a dispute between the two, the accused decided to accompany them in order to protect Sachikonye. He also told them not to assault each other. He did not assault Sachikonye as alleged as he was the one housing him and giving him work.

They found the deceased who denied having the stolen goods. The deceased was taken to Mukandi's cabin and the accused claims to have told the Mukandi to take them to the police as he had said he had already reported the theft and went to sleep and did not participate in the assault at all. He had no reason to assault them as they were from the neighbourhood.
The accused denied having told the deceased's relatives that he had participated in assaulting the deceased.

He had presented himself at the police station in order to explain his side of the story as people had been looking for Sachikonye. There was no bad blood between him and Sachikonye. He was arrested after he gave his police statement.

The accused said he had known Mukandi for only 2 months and denied having any sister and particularly one called Netsai.

Under cross examination, the accused denied that he had missed any trowel and clothes at the hands of Sachikonye. He emphasized that he had a good relationship with Sachikonye. He could not explain why Sachikonye had then fled from his home after the alleged confrontation with Mukandi instead of seeking refuge with him.

When quizzed about the trowel statement in his police statement, the accused denied the statement which he had incorporated in his defence outline.

When the court sought clarification on the timeline of the events, the accused said that they collected Sachikonye from the shops around 2:00pm and arrived at 2:30 pm. The accused only left to sleep around 6:00pm during which time he was just watching Mukandi assaulting Sachikonye and demanding that he disclose where the stolen property was. At 7:00pm Mukandi came to wake him up by which time the neighbours were in their houses. They had arrived at the deceased's house around 9:00 pm. They had arrived back at Mukandi's place around 1:00am. This was for a place which was one kilometer away and all they allegedly did was walk and talk. The accused left for his own place immediately then at 1:00am whilst Mukandi proceeded with the two to his place.

With this the defence closed its case.

Common Cause Facts.

The accused, in his defence outline states that he gave his statement to the police freely and voluntarily without any illicit pressure being brought to bear on him. He incorporated the contents of his confirmed warned and cautioned statement into his defence outline. The defence outline was also incorporated into evidence.

Section 256 (2) of the Criminal Procedure and Evidence Act [Chapter 9:07] provides that a confession or statement confirmed in terms of Section one hundred and thirteen shall be received in evidence before any court upon its mere production by the prosecutor without further proof.

In this case the following facts emerge from exhibit 2 as common cause:

1. There is a strong association between the accused and Mukandi.

a. They were close neighbours.

b. They confided in each other. In this case Mukandi confided in the accused about the loss of his blanket and gas tank.

c. The accused willingly accompanied Mukandi in hunting for Sachikonye and located him at pama Grounds shops.

d. The association was strengthened by the fact that the accused claimed to have also lost a trowel to Sachikonye's thieving.

e. The accused was present at Mukandi's cabin when Sachikonye was assaulted. In evidence, he clarified this was for three and half hours.

f. The accused accompanied Mukandi to deceased's house and collected him and brought him to Mukandi's house where the assaults continued in his presence.

2. It is common cause that Sachikonye was assaulted at Mukandi's place before the deceased was fetched.

3. Exhibit 2 confirms that dangerous weapons were used in the assault, an iron rod / bar.

4. It is common cause that Sachikonye was staying with the accused and doing some construction work for him at the material time.

Other common cause factors emerging from the overall evidence are as follows:

1. There was a woman at or near Mukandi's cabin who told the deceased's relatives that he had departed from the cabin at 5:00am on 27 December 2024. This was in the presence of the police, and it prompted the attending police officers to depart without any further investigations.

2. It is common cause that the deceased's body was discovered in Mukandi's cabin, the place he had been delivered to after his collection by the accused, Mukandi, Sachikonye and Samutoko.

3. From the accused's warned and cautioned statement, he witnessed Mukandi assaulting the deceased using an iron rod. He was therefore present.

Disputed Issues

The accused disputes the following;

1. That he assaulted the deceased and Sachikonye as alleged or at all.

2. That there is a valid postmortem report.

Whether there is a valid postmortem report.

It is defence counsel's submission that the postmortem report which is in the form of an affidavit and does not show the identity of the commissioner of oaths *exfacio* the document is not valid. It is argued that there is therefore no postmortem report. The court was referred to the case of *Prosecutor General V Edmore Makarichi &ORS* HH 502/23. This case was an opposed court application wherein the validity of the supporting affidavits was challenged. This was on the basis that the supposed Commissioner of Oaths was not disclosed as the name of the purported Commissioner of Oaths is not disclosed. Above the designation "Commissioner of Oaths" appears not the name of the purported commissioner of oaths but a signature and handwritten endorsement suggesting that the signatory is a detective inspector. The stamp used is for the ZRP Officer-In-Charge, Team One Criminal Investigation Department. Further, the office or capacity in which the unknown signatory was acting as the purported Commissioner of Oaths is not disclosed.

In the above case, the court found that what was placed before it fell far short of the legal requirements. It was not an affidavit. This conclusion was reached after considering cases such as *Tawanda V Ndebele* 2006(1) ZLR 426 (H) and *Firstel Cellular (Pvt) Ltd V Netone Cellular (Pvt) Ltd* 2015 (1) ZLR 94 (S).

The case before me is distinct. It relates to the application of the Criminal Procedure and Evidence Act (Chapter 9:07) instead of civil procedure. Section 278 (1) (a) of the Criminal Procedure and Evidence Act provides as follows

> "278 Admissibility of Affidavits in certain circumstances".
> (2) In any criminal proceedings in which it is relevant to prove –
> (a) any fact ascertained by a medical practitioner in any examination carried out by him which is proper to the duties of a medical practitioner,
> (b) that any treatment, including the performance of an operation, was administered by a medical practitioner,
> (c) any opinion of a medical practitioner referred to in paragraph (a) or (b) relating to any fact of treatment referred to:
>
> a document purporting to be an affidavit relating to any such examinations or treatment and purporting to have been made by a person who in that affidavit states that he is or was a medical practitioner and in the performance of his duties in that capacity he carried out such examination and ascertained such fact in such examination or administered such treatment, and in either case, arrived at such opinion, if any, stated therein shall, on its mere production in those proceedings by any person, but subject to subsections (11) and 12, be prima facie proof of the facts and of any opinion so stated." (My emphasis)

The postmortem report falls within the ambit of section 278 (2) of the Criminal Procedure and Evidence Act as was prepared by Doctor Ariana Pedro Courguet, a registered medical practitioner.

The use of the term "a document purporting to be an affidavit …. purporting to have been made by a person who in the affidavit states that he is or was a medical practitioner …." is very intentional selection of language by the legislature. It does not say "an affidavit". The very literal interpretation is that the document is a written and signed statement that appears or claims to be a sworn, notarized or legally authorized declaration of facts. In legal terms "purporting to be" means the document looks like or claims to be an affidavit but its validity or accuracy has not yet been fully verified or tested in court.

Section 278 (2) provides that such document shall, on its mere production in the proceedings, be *prima facie* proof of the facts. This is so, unless the provisions of section 278 (12) are set in motion to verify or test its validity.

In terms of S278 (12).

> "The court in which any affidavit referred to in this section is produced in evidence, may, of its own motion or at the request of the prosecutor or of the accused, because the person who made the affidavit or any other person whose evidence the court considers to be necessary to give oral evidence in the proceedings in question in relation to any statement contained in the affidavit or may cause written interrogatories to be submitted to such person for reply, and such interrogatories or reply thereto purporting to be a reply from such person, shall, on their mere production in those proceedings by any person, be admissible in evidence".

In casu there was no resort to section 278 (12) by the court and either party.

It is therefore our finding that exhibit 1, the postmortem report, by its mere production is/shall be *prima facie* proof of the facts stated.

Dr Arian Pedro Courguet concluded that the death of the deceased was caused by pneumothorax secondary to severe thoracic trauma. We accept this fact.

Whether the accused participated in the assault of Sachikonye and the deceased.

This is the deciding factor in this matter.

Though the defence sought to paint Sachikonye, the only witness who was present during the assault, as an implausible witness, we did not find this to be true. This is particularly as aspects of his testimony were corroborated by the accused's own testimony and his confirmed warned and cautioned statement. He has a psychologically threatened witness who went into hiding after the assault. He seems to have tried to protect the accused who was sheltering him

and employing him as he was of no fixed abode by denying that accused accused him of stealing his trowel and failing to submit the medical affidavit to the police which would have demonstrated the nature of injuries he suffered. Though he tried to minimize the role played by the accused, he made clear that the accused participated actively in the assaults. We therefore accepted his evidence.

The first issue is that the accused was present when Sachikonye was fetched from the shops. He was there and took part in assaulting him from around 4:00p.m, he participated when Sachikonye was tied up on the hands and legs and the accused and Mukandi took turns to assault him using sticks and an iron rod. This went on till 12:00 midnight though he could not tell who used which weapon when.

Though the accused wanted to give the impression that he stood by whilst Mukandi only did the assaulting and then went to sleep, the timeline of this having started at 2: 30p.m and leaving around 6:00p.m does not explain what he was doing for 3 and ½ hours. He does not say what he did to stop Mukandi. We believe Sachikonye's version that he was actively engaged in the assault.

The accused lied that Sachikonye had not stolen anything from him contrary to his confirmed statement that he had stolen a trowel. He therefore had motive which matched that of Mukandi who claimed to have had his goods stolen too. This explains their teaming up.

After going to bed the accused lamely explains that he joined Mukandi to fetch the deceased as he wanted to protect Sachikonye from Mukandi. How could this be as he had left Sachikonye in the hands of Mukandi who was assaulting him?

Sachikonye related how he was assaulted on the way to fetch the deceased and on the way back. This explains why they took 2 hours to reach a place which was 1km and 4 hours on the way back. He said he could not walk properly due to injuries emanating from the assault.

Samutoko witnessed the accused assaulting the deceased, taking turns to slap the deceased. Samutoko was however not present all the time so as to fully account for any assaults meted out by the accused on Sachikonye. Sachikonye also said he was not assaulted whilst at Samutoko's place and at the deceased.

Sachikonye said upon arrival at Mukandi's place they were both taken inside the cabin and the accused and Mukandi assaulted them. He was taken outside so they could work on the

deceased. He witnessed the accused assaulting the deceased whilst in the cabin and when he was taken outside and the door was open as they took turns to assault them. The iron rod, sticks and electric cables were used.

The accused was lying in his evidence in chief when he said upon returning from fetching the deceased he immediately went to his home and did not reach Mukandi's place. This is contrary to his confirmed statement where he said,

> "We then went to the now deceased's and took him back to that man's house. When we got to his house this man started to assault the now deceased and Sachikonye using an iron bar".

He was present and participated in the assault.

The evidence from Admire Jeche and Thokozile Sithole confirms that when they arrived at Mukandi's cabin and he finally opened up he called the accused and said they had assaulted the deceased together.

The accused is said to have said they had been disciplining him. Even in his confirmed statement, the accused says he told the deceased's relatives that they are the ones who collected him from his house.

We also rely on the provisions of section 196 A (1) of the Criminal Law Code. It holds two or more people accused of committing a crime in association with each other where evidence is led to show the requisite *mens rea* whether or not their conduct contributed directly in any way to the commission of the crime, as liable. They may be found to have the intention to commit the crime or knowledge that it would be committed or the realisation of the real risk or possibility that a crime of this kind would be committed. In which case they may be convicted as a co-perpetrator.

Section 196A (2) lists factors that are indicative to prove that two or more persons accused of committing a crime in association with each other had the requisite *mens rea.*

The first is that they were present at or in the immediate vicinity of the crime scene. In this case the accused places himself at the scene in both instances when Sachikonye was assaulted at the cabin and when the assault on the deceased occurred at the cabin. He was also available in fetching both victims. This directly implicates him in the commission of the crime.

Secondly, the co-perpetrators were associated together in any conduct which resulted in the crimes for which accused is charged. By his own evidence, the accused went with Mukandi

hunting for Sachikonye. He then also went hunting for the deceased in the dead of the night dragging the injured Sachikonye and force marching Samutoko to lead them.

Mukandi and the accused jointly told a lie to the deceased's relatives that the deceased had left well knowing he was in the cabin. The lie was bolstered by Netsai, Mukandi's girlfriend and accused's sister. This was to buy them time to disappear from the scene.

Count 1

Given the totality of the evidence, it is our finding that the accused had the requisite *mens rea* to commit murder as he realised the real risk or possibility that his conduct may cause death, but he continued in that conduct despite the risk or possibility.

We find him guilty of murder as defined in Section 47 (1) of the Criminal Law Code.

Count 2

Sachikonye was brutally assaulted to the point of being in a bad shape some 2 days later with bruises all over the body, swollen legs and unable to walk. He even says he still suffers from back ache.

Only a medical practitioner's evidence would have enabled the court to assess the degree of the assault perpetrated on Sachikonye to make appropriate conclusions whether the accused did or omitted to do anything that had reached at least the commencement of the execution of a murder crime.

Sachikonye said although the deceased was assaulted all over the body indiscriminately, he was only assaulted from the neck downwards.

The evidence having only proved that the accused and his co-perpetrator committed an assault upon Sachikonye intending to cause him bodily harm or realising the attendant risk, we find the accused not guilty of attempted murder but guilty of assault as defined in Section 89 (1) of the Criminal Law Code.

Consequently, we order as follows:

Count 1

1. The accused is found guilty of murder as defined in Section 47 (1) of the Criminal Law Code.

Count 2

2. The accused is found not guilty of attempted murder but is convicted of assault as defined in Section 89 (1) of the Criminal Law Code.

Sentencing

The Law

The court is obliged to first decide on whether the offence of murder was committed in aggravating circumstances or not. The court will then be guided as to whether section 47 (4) (a) or (b) applies.

Where it is found that a murder was committed in aggravating circumstances, Section 47 (4) (a) provides for a penalty of imprisonment for life or any definite period of not less than twenty years. Where no aggravating factors are found, the penalty is imprisonment for life or any definite period of less than fifteen years or (if there are special circumstances) of not less than five years.

The sentencing guidelines SI 146/2023 set the presumptive penalty for aggravated murder at 20 years and the presumptive penalty at 15 years imprisonment for where mitigating factors exist.

In respect of assault, the penalty ranges from a fine up to or exceeding level fourteen, or imprisonment for a period not exceeding 10 years or both. One has to have regard to the factors set in S89 (3) of the Criminal Law Code such as the age and physical condition of the person assaulted, degree of force employed, extent of physical injury on the assaulted person, whether the intention was to inflict bodily harm, whether assailant was in a position of authority of the person assaulted.

The presumptive penalty for an assault committed in aggravating factors per the Sentencing Guidelines is 3 years imprisonment and where there are mitigating factors, it is a level 4 fine.

Mitigating Factors we found to exist.

We took note that the accused is a first offender, Section 9 (a) of the Sentencing Guidelines urges the court to take this into account as do several other case law authorities.

The personal circumstances of the accused are that he is a 35 year old man, widowed and father to two minor daughters aged 8 and 6 years. He is the sole breadwinner for his children and elderly mother aged 65 years.

Aggravating Factors Found to Exist.

The assaults on the two victims were brutal, prolonged and unjustified. The assault on Sachikonye started in the afternoon of 26 December 2024 into the early morning of 27 December 2024. That of the deceased started close to midnight on 26 December 2024 to early morning 27 December 2024.

The accused and his co-perpetrator used lethal weapons which included an iron rod, sticks, electric cable and open hands. Due to the brutal attacks, it took them up to 4 hours to walk a distance of about a kilometre as they dragged and assaulted the victims.

It was our finding that the accused was an equal participant in the assaults.

The assaults on the victims have been argued to constitute torture and are a violation of Article 1 of the United Nations Convention against Torture and other Cruel or Inhuman or Degrading Treatment or Punishment. This is particularly so as the assaults were intended to elicit confessions on the suspected stolen goods. See *State v Reza & Another* 2004 (1) ZLR 138(H) pp 142 H – 1143G and *Petros Makaza & Another v State and Kumbozo Gumbo & Another v State* CCZ 16/17 p3.

The two victims were tied up with a rope/electric cable on the hands and legs, they were not aggressive.

The accused and his co-perpetrator shut out any assistance which could have been rendered to the deceased who was in their custody. They warded the relatives away on the lie that the deceased had left to fetch the goods and even got a woman accomplice to tell this lie in the face of the police. Thereafter they put double locks to the cabin and made their escape good.

Life is sacrosanct. It is God given and constitutionally guaranteed. No one has the right to take the law into his hands and deal with another human as he pleases.

The accused was in the position of employer of Sachikonye and held a position of authority over him and even housed him. Instead of protecting Sachikonye he elected to turn villain.

The accused and his relatives have not apologised for the offences. They did not render any assistance at the funeral. The accused's demeanor in court did not show any remorse.

The victim impact statement of Thokozile Sithole (deceased's mother) shows the high level of trauma she has suffered from the discovery of blood at the cabin door to when the body was discovered. No mother should ever go through that. Her trauma was evident as she gave her

evidence. Equally the brother Admire Jeche who watched helplessly as his brother was dragged to his death is traumatized. The family has been robbed of a breadwinner. The deceased left two minor children whom Sithole now has to fend for her.

Sachikonye has not received any pity or acknowledgement from the accused. He is still suffering pain on his back as a result of the assault and is now unable to fend for himself and has been relegated to a beggar.

It was not enough that they assaulted Sachikonye, they went in the dead of the night to fetch the deceased and bludgeoned him to death.

The Sentence.

The State proposed a sentence of 25 years imprisonment for count 1- and 8-years imprisonment of which 3 years is suspended for court 2 with the sentences running concurrently.

The defence prayed for a sentence of 15 years imprisonment, or any sentence not exceeding 20 years with a portion suspended on condition of good future behaviour. It is proposed that the sentences run concurrently.

The aggravating factors far outweigh the mitigating ones. The murder was committed in aggravating factors.

In the circumstances the following sentences are fitting.

Count 1 – 22 years' imprisonment.

Count 2 – 5 years' imprisonment with 3 years suspended for 5 years on condition that the accused does not, within that time commit an offence in which violence on the person of another is an element and for which he is sentenced without the option of a fine.

The sentences in count 1 and count 2 are to run concurrently. Effective 22 years' imprisonment.

MUCHAWA J: …….

National Prosecuting Authority, Counsel for the State
T.K Takaindisa Law Chambers, Counsel for the Accused